PLATEAU STATE
GEOGRAPHIC INFORMATION SYSTEMS
Joseph Gomwalk Boulevard, P.M.B 2037, Jos, Plateau State,

Individual Application for Statutory Right of Occupancy

APRO1

Property Number

This process pertains to the Application for Right of Occupancy by Individuals.

General Information

An application for a Right of Occupancy is where an individual/entity applies for grant of title over land to which he/she/they possess requisite proof of ownership. The holder of a statutory right of occupancy is in all respect the proprietor of the land during the subsistence of the right. Section 14 of the land use Act confers the holder of a statutory right of occupancy with exclusive possession of the land against all persons other than the Governor.

A Right of Occupancy is required for the following reasons:

1. To secure your Title (in line with the permissions of the act land use act decribes)
2. For mortage or to secure a loan facility or to pledge it to bail someone out.
3. To easily transfer rights to heirs.

The Right of Occupancy is valid for a term of ninety nine (99) years. Term not transferable.

The occupier of a statutory right of occupancy is mandated at all times to maintain in good and substantial repair to the satisfaction of the Governor or his appointee beacons or other landmarks by which the boundaries of the land are defined. Failure to comply with a notices of compliance served on him would render such occupier liable to pay the expenses incurred by the Governor in defining the boundaries which the occupier neglected to define.

Associated fees

Certain fees are expected to be paid for a successful application. These fees are:

1. Application fee
2. Processing fee
3. Layout Approval fee
4. Survey fee
5. TDP fee
6. Plan Lodgement fee (paid if a private surveyor carried out the survey)
7. Contravention fee (fee paid if you have started developments without Town Planning approval)
8. Ground Rent
9. *Ground Rent Penalty: 5% of outstanding ground rent.

*Applies only if outstanding, unpaid ground rent exists

Application forms and different methods for submission.

This application and all other forms are available for download at http://www.plateaustate.gov.ng/downloads.

You can submit your application for this transaction in any of these ways, depending on which is convenient and feasible:

1. Fillable Document Format (PDF): You can download a copy of this application from http://www.plateaustate.gov.ng. A filled application form can be submitted via the portal through http://www.plateaustate.gov.ng. You will need an online account for the form submission. After submission, we extract and validate your data and prompt you for with the validation results of your upload. If there are errors in the data, we provide the erring fields and information to assist in correcting these. Validated and error-free forms are successfully submitted. For application with supporting documents, you need to provide these on the portal after you login with your credential. Once the application is correctly lodged, you will be allowed to proceed to the payment section of the transaction.
2. Online forms – An applicant can log in to the portal, and use our wizard-like online web. This approach provides a very interactive avenue for filling forms and uploading the supporting document. For example, the state of an application could be stored. An applicant can continue to where he stopped anytime from any internet enabled device. Also, for applicants using Fillable PDF, they need the online forms for submission of supporting documents.
3. Paper submission – An applicant wishing to use this approach will need to get a copy of the application form. A copy can be downloaded from http://www.plateaustate.gov.ng. If the applicant gets a Fillable PDF, we advise the form is filled on computer and printed. The forms can also be printed and filled. Once completed and signed, the applicant needs to submit these, including the supporting documents, at the PLAGIS office.

If Option 1 **Fillable Document Format (PDF)** is the submission method selected and the applicant is using the Standard version of Adobe Reader, then the applicant must follow the steps outlined below, when about to save the form after filling it:

1. Navigate **to File > Print** or Press **Ctrl+P**.
2. On printer, select any of the available virtual PDF printer which could include Adobe PDF, PDFCreator, PageManager PDF Writer or any other.
3. Click Print. This prompts a Save-dialog box to save your filled-in PDF document.

Steps and Their Expected Duration

The Application for Right of Occupancy is a transaction that involves the following processes:

1. Fill the form and attach required files and submission of the application.
2. On receipt of application, it's sent to the commissioner's office. After commissioner's approval it is sent to Perm. Secretary's

desk and after his approval, it is sent to the Director of Lands' desk who sends it to the Land Administration department.

3. In the Land Administration department, the application is registered with a file number and the following details checked to ensure that documentation is complete: Name of individual, location and size of land parcel, the purpose clause, and endorsement by LGA chairman, a ward head or customary chief to certify true ownership of land. Should any necessary detail be missing, the process would be halted and applicant notified via SMS or Email.
4. The Land Administration Department then forwards the new file to the Customer Service department to prepare the necessary fee for the application. A demand notice is then issued via SMS or Email to the applicant stating the fees to be paid. The process halts until these fees are paid
5. Once payments have been made, the file moves to Finance Department to record payment, then to Rent and Fees Department to record the payments too. Then its sent to Director of Lands.
6. The director dispatches the File to Survey General in the Survey Department. The Survey General sends the file to Quality Control, where the survey data in the file is checked to ensure accuracy. A checking report is created. This checking report is sent together with the file to Vectorised Data Entry Section (VEDES). Here the parcel of land is checked on the Map to ensure the map is free/ not allocated. If it's not, all processes are halted and the applicant noticed via SMS or Email. If it's free, report and file sent to Survey General, who forwards file to Town Planning.
7. Delegates from Town Planning for to the land for site inspection. A site analysis report is created that takes into cognizance the following: Planning and development definitions and land zoning. If land is found to overlap with an area meant for road construction or a similar issue will cause all processes to be halted and application taken back to Stage 6, where a resurvey has to be done. Applicant will be notified. However, if all is in order, then file sent to Director of Lands form the Director of Town Planning.
8. The Director of Lands sends the file to Land Administration that raises a recommendation for Grant. This recommendation contains: the rents, the time the title is granted, the proposed use and location of the land. The recommendation is dispatched to Perm. Sec from Director of Lands and returns to the Director after the Perm. Sec and Commissioner have signed. The Director of Lands now sends the file to Land Administration to prepare the Grant.
9. Once the Grant is ready, the Director of lands, the Perm. Sec and the Commissioner sign it. Then the Director of Lands dispatches it to the Collection Unit. Applicant will be notified to come and collect his Grant. Before he can collect the Grant, he must fill and sign an acceptance form accepting the terms of the Grant. Upon collection of the Grant he becomes known officially as a titleholder.
10. The Acceptance form is sent to the Commissioner, Perm. Sec and then the Director of Lands dispatchs it to the Collection Unit for filing.
11. Upon acceptance, the CofO will be prepared, approved and registered, then applicant can come to collect his/her CofO.

NOTE: If property is owned by two (2) or more parties, kindly request for PSF1 (Individual) or/and PSF2 (Organisation)

Property Number

1. Date of Application: DD / MM / YYYY

Insert the date application is being made here.

Applicant's Personal Information

2. Title:
3. Surname:
4. First Name:
5. Other Names:
6. Date of Birth: DD / MM / YYYY
7. Gender: Male Female
8. Place of Birth
9. Occupation
10. Nationality
11. State of Origin
12. LGA
13. Home Town

Fill in applicant's personal details. : If property is owned by two (2) or more parties, kindly request for PSF1 (Individual) or/and PSF2 (Organisation)

14. Identification Document
    - ☐ International Passport
    - ☐ Driver's Licence
    - ☐ National ID Card
    - ☐ Voter's Card
    - ☐ Others _____
15. Identification Number

Tick appropriate means of approved identification and identification number. Provide identification as supporting document.

16. Tax Identification Number (TIN):

Applicant's Contact Information

17. No.
18. Address
19. City/Town/Village
20. State
21. Country
22. Telephone:
23. Email Address:
24. What is your preferred mode of communication? ☐ Telephone ☐ SMS ☐ Email

Applicant's Representative's Information.
(This Section is applicable if the application is being made by a representative)

25. Title
26. Surname
27. Other Names

Representative or person's making this application on behalf of the applicant should fill this section.

This section should be ignored, if the owner of property is making the application in person.

28. Representative's Contact Address in full:
29. Telephone:
30. Email Address:
31. Does representative have the Registration Particulars for the Power of Attorney?
    ☐ Yes ☐ No

Applicant's representative is expected to povide evidence of details of power of attorney and attach to this application

32. What is your relationship with the applicant?

Representative should produce evidence of status/claim.

Third Party Notificiation

Full Name	Telephone	Email Address

Provide your information and other third-parties you will like to be notififed at the completion of this transaction.

Property Information

33. Block No.
34. Plot No.
35. Area
    ____ ☐ Hectares ☐ Acres ☐ Sq.Metres
36. Land Location/Description:

37. Value of Improvement Offered

38. Time required for Erection

39. Kindly specify the required Land use or Purpose (tick ☐ for land use and ○ for purpose from list)

☐ Residential

- ○ Private Residential
- ○ Government Residential
- ○ Government Housing Estate
- ○ Government Staff Quarters
- ○ Private Staff Quarters
- ○ Federal Housing Estate
- ○ Police Barracks
- ○ Army Barracks

☐ Commercial

- ○ Hotel
- ○ Hostel
- ○ Guest House
- ○ Restaurant/Fast Food
- ○ Fresh Fruit Market
- ○ Neighbourhood Centre
- ○ Small Shops
- ○ Corner Shops
- ○ Market
- ○ Supermarket
- ○ Central Market
- ○ Shopping Mall/Plaza
- ○ Business Centre
- ○ Office
- ○ Warehouse
- ○ Plant Nursery
- ○ Workshop
- ○ Petrol Filling Station
- ○ Gas Filling Station
- ○ Fuel Depot
- ○ Garage/Carwash
- ○ Bank
- ○ Law Firm
- ○ Insurance
- ○ Internet Cafe
- ○ Video/Indoor Games
- ○ Night Club/Disco
- ○ Cinema
- ○ Theatre
- ○ Sports Facility

Industrial

- ○ Slaughter House
- ○ Small Scale Industry
- ○ Stones, Ceramic, Glass, Electric, Electronic, Wood
- ○ Paper, Printing and binding, Chemical Industry
- ○ Mechanical & Steel Vehicle, Construction, Metal
- ○ Assembly Plant
- ○ Leather, Textile and Clothing Industry
- ○ Food & Beverages Manufacturing
- ○ Factory
- ○ Quarry
- ○ Borrow Pit

Public Institution

- ☐ Nursery School
- ○ Day-care
- ○ Nurs. & Pri. School
- ○ Primary School
- ○ Night School
- ○ Secondary School
- ○ College/University
- ○ Research Institute
- ○ Educational Institute
- ○ Training/Vocation Centre
- ○ Church
- ○ Mosque
- ○ Place of Worship
- ○ Clinic
- ○ Hospital
- ○ Pharmacy/Chemist
- ○ Labouratory
- ○ Medical Centre
- ○ Specialist/Diagnostic Hospital
- ○ Veterinary Clinic
- ○ Dental Clinic
- ○ Nigeria Ports Authority
- ○ Police Station
- ○ Fire Station
- ○ Fire Service
- ○ Prison
- ○ High Court
- ○ Magistrate Court
- ○ Customary Court
- ○ Military Formation
- ○ Museum
- ○ Government Institution
- ○ Parastatals
- ○ Library
- ○ Archive
- ○ Community Centre

☐ Public Utility Unit

- ○ Telephone Sub-Exchange Site
- ○ TV or Radio station
- ○ PHCN 132/33kv Transformation Station
- ○ PHCN 33/11kv Transformation Station
- ○ Gas Pipeline
- ○ Water Pipeline
- ○ Post Office
- ○ NIPOST
- ○ Water Treatment Plant
- ○ Dump Site/Active Recreation

☐ Transportation

- ○ Expressway
- ○ Parkway
- ○ Transit way
- ○ Arterial Road
- ○ Collector Road
- ○ Important Local Street
- ○ Selected Important Local Street
- ○ Minor/Access Road/Cul-de-sac
- ○ Courtyard access Road
- ○ Private Road
- ○ Railway Track
- ○ Mini-railway Track
- ○ Bus Depot
- ○ Railway Station
- ○ City Bus Station
- ○ Public Parking
- ○ Motor Park
- ○ Long/Trailer Park
- ○ Airport
- ○ Bus Stop
- ○ Interchange
- ○ Road Corridor
- ○ Bridge
- ○ Footpath
- ○ Pedestrian Walkway

☐ Open Space/Green Area

- ○ Golf Course
- ○ Country Club
- ○ Active Recreation
- ○ Recreational Centre
- ○ Sports Arena
- ○ Amusement Park
- ○ Neighbourhod Park
- ○ Play Ground
- ○ Local Park
- ○ Cemetry
- ○ Undeveloped Land
- ○ Protected Drainage Course
- ○ Flood Plan
- ○ Natural River Course
- ○ Water Reservoir/Dam
- ○ Forest Reserve
- ○ Lake

Mixed Use & Agriculture

- ○ Multi-Purpose
- ○ Special Development
- ○ Comprehensive Development
- ○ Agriculture

40. Does applicant possess any right(s) of occupancy held in the state? ☐ Yes ☐ No

41. If YES, provide certificate number:

Applicants who have other R of O or C of O should fill this section and also enter the certificate number.

Supporting Docunments

42. Provide the following List of Supporting Document along with this application.

Supporting Documents	x
Taxpayer Identification Number Printout	
Form of Identification	
Survey Report	
Passport Photograph	
Income Tax Clearance Clearance	
Change of Ownership	
Deed of Assignment	
Customary Evidence of Ownership	
Court Judgement	
Power of Attorney	
Sales Agreement	

Applicant's are expected to provide all the documents list in this section.

Supporting documents present in the application should be marked "X".

Applications with incomplete supporting document would not be accepted.

Applications who's supporting document can not be verified, would not be processed.

Rows crayed are referred to as supplementary documents that would be requested for upon processing of application.

WARNING

It is a punishable offence to provide any false information and or make any false statements or claim when completing this form. Where it is subsequently discovered that a Right of Occupancy was issued based on false or inaccurate information, the Permanent Secretary may in his sole discretion, revoke such Right of Occupancy.

The Permanent Secretary reserves the right to reject any application for not properly or fully completed and shall not incur any liability for any such revocation. The information you supply on this form is public knowledge and may be published in the media

43. Attestation/Declaration

I attest that all information entered are accurate and have been reviewed by me. I also declare that I am liable for all information entered above.

44. Signature\Date

DD / MM / YYYY